

Assignment 3: Revision of Regulating Online Behaviors of Section 230

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Cautious modifications are necessary for Section 230 of the Communications Decency Act (CDA) due to its flaws and complaints for regulating abusive online behavior despite its huge influence on internet speech (Ardia, 2010). Section 230 emphasizes balancing free expression with the need to address harmful content by shielding internet companies from certain legal liabilities related to content posted by their users (Communications Decency Act, 1996). Since the complexity of the law is easily misunderstood, Congress may suggest that amending the law can help determine verdicts in future legal cases (Kosseff, 2022). To reform Section 230, defining it contextually before discussing the solutions will weigh in the advantages and disadvantages before a revision.

According to Kosseff (2022), the foundation of Section 230 began in 1964, when its precedent court cases, *New York Times v. Sullivan*, and *Sullivan v. California* helped shape the decisions of other cases related to Section 230 of needing evidence to win against online behavior liability and free speech. Eventually, it was created four years after the *Cubby v. CompuServe* court case in 1991 concluding editorial control and companies not liable for user content. In 1995, *Stratton Oakmont, Inc. v. Prodigy Services Co.* argued that Prodigy, an online internet provider, was liable for subscribers' post content as Prodigy was responsible for the media content (Leary, 2018). Implementation of Section 230 reversed the outcome that Prodigy will not be liable for user content on its platforms as a publisher. For other companies like Prodigy, publishing content outside the sources will not have legal consequences for third-party acts. Section 230 protects online companies to regulate and monitor user speech on the internet (Kosseff, 2022). However, violating federal law and illegal or harmful content are not protected (Citron, 2023).

Moreover, according to Mediavilla (2022), Section 230 benefits internet providers who wish to showcase controversial or politicized speech with a legal platform favorable to free expression. It balances preventing liabilities from online companies while granting no liability from third-party content of users' speech on the platform. However, there are negative consequences where companies with online services can take advantage of Section 230. This gives internet platforms the power to allow harmful and illegal content. Currently, Section 230's protections have allowed hate speech, election interference, "fake news," terrorism, and sex crimes to be in the United States creating a world of negative content (Mediavilla, 2022).

Furthermore, Mediavilla (2022) emphasizes that reformation is necessary as Section 230 provides too much shield to online services; that allows companies to harm users without consequences. She argues that after the Fight Online Sex Trafficking Act ("FOSTA") in 2018, there were twenty-six proposed amendments to reform Section 230 between 2019 and 2021. One of the proposals includes mandating content moderation, forcing online platforms to become common carriers, or repealing Section 230. Another method is to limit immunity by enacting online platforms to act when users report illegal or harmful activity (Mediavilla, 2022).

As Mediavilla (2022) mentions these changes keep the legal shield immunity if the companies follow the amendment but may lose the immunity if they fail to address the issue. In other words, if an online platform doesn't respond to a report of harmful content within fifteen days, it can lose its legal protection, and the victim may file liabilities against the platform. This is because the online platform is considered responsible for the content. Even though this is a long and expensive trial, it allows victims to pursue their legal claims against an online platform defendant who can no longer hide behind the immunity shield of Section 230 (Mediavilla, 2022).

In addition, as Citron (2023) mentions, if Section 230's legal shield is removed, platforms would have liabilities against illegal hosting content on the platform, including privacy violations and cyber harassment. In other words, platforms would not be liable for user-generated content. Nonetheless, Prodigy taught significant lessons. If online platforms lose their legal shield, they might be less strict about moderating content to avoid legal risks. The downside is that they may "filter, block, or remove posts if they continue display." There is no estimation of how much online speech would be censored or removed if Section 230's legal shield was gone (Citron, 2023). Other reforms suggest clarifying Section 230's subsections. Subsection (c)(1) is changed to the limitations of the immunity. Meanwhile, (c)(2) emphasizes that failure to remove harmful content makes the company liable (Bradley, 2022).

Moreover, all these reforms are significant as a modern case takes Section 230 of the CDA as a test. According to *Anderson v. TikTok* (2024), the case involved a young girl who tragically died after participating in the "Blackout Challenge," a dangerous trend popularized on TikTok. The lawsuit against TikTok alleged that the company's algorithm, which personalized content for users through the "For You Page" (FYP), was responsible for exposing the girl to harmful videos related to the challenge. The plaintiffs argued that TikTok's algorithm amplified and promoted dangerous content, contributing to the girl's death. The key issue in the case was whether Section 230, which protects online platforms from liability for posts related to third-party content, applied to TikTok's algorithm. The court ruled that Section 230 did not protect TikTok, finding that the company's algorithm was a "tool" used to curate and distribute content. The conclusion suggests that platforms may be held liable for their algorithms if those algorithms are found to contribute to harm (*Anderson v. TikTok*, 2024).

Furthermore, the *Anderson v. TikTok* case is significant because it directly challenges the scope of Section 230 of the Communications Decency Act (CDA). This landmark case could potentially redefine the boundaries of online platform liability for content curated and amplified by their algorithms. According to *Anderson v. TikTok* (2024), the court's ruling suggests that platforms may be held liable for their algorithms if those algorithms are found to contribute to harm. This could lead to a need for more specific guidelines or exceptions to Section 230 for platforms that use algorithms to promote harmful or dangerous content. The case could also prompt discussions about the adequacy of existing content moderation practices. Some reforms include safety measures to prevent harmful content from spreading through algorithms. Increased transparency regarding platform algorithms and content moderation practices could help to hold platforms accountable for their actions. These reforms could require platforms to disclose more information about how the algorithms work and the criteria used to prioritize content (*Anderson v. TikTok*, 2024).

Consequently, the benefits of reformatting Section 230 surpass those negative outcomes. By holding platforms more accountable for their role in content distribution, these reforms could help to protect users from harmful content and promote responsible online behavior. Reforms focusing on content moderation and transparency could help to create a safer online environment for users. By clarifying the boundaries of Section 230, these reforms could provide greater legal certainty for online platforms, encouraging innovation and investment in new technologies. Therefore, cautious modifications are necessary for Section 230 of the Communications Decency Act (CDA) to balance the powers of free speech and the companies' shield laws for immunity against liabilities.

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